

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tatyana Gonzalez	Team: Squad #11	CCRB Case #: 202305667	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 12/08/2022 8:00 PM, Thursday, 12/08/2022 8:54 PM	Location of Incident: East 123rd Street and Park Avenue; 25th Precinct Stationhouse	18 Mo. SOL 6/8/2024	Precinct: 25		
Date/Time CV Reported Thu, 06/22/2023 12:47 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/22/2023 12:47 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Justin Senese	21424	959978	025 PCT
2. SGT Norman Ortega	00590	947823	025 PCT
3. PO Sean Regan	26771	971194	025 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alexander Pacult	26746	972154	025 PCT
2. PO Edwin Lau	06902	950730	025 PCT
3. PO Nicholas Lamere	23697	969878	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Norman Ortega	Discourtesy: At East 123rd Street and Park Avenue in Manhattan, Sergeant Norman Ortega spoke discourteously to § 87(2)(b)	A . Substantiated
B . PO Justin Senese	Force: At East 123rd Street and Park Avenue in Manhattan, Police Officer Justin Senese used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Justin Senese	Abuse: At East 123rd Street and Park Avenue in Manhattan, Police Officer Justin Senese threatened to arrest § 87(2)(b)	C . Substantiated
D . SGT Norman Ortega	Abuse: At East 123rd Street and Park Avenue in Manhattan, Sergeant Norman Ortega seized § 87(2)(b) property.	D . Within NYPD Guidelines
E . PO Justin Senese	Discourtesy: At the 25th Precinct stationhouse, Police Officer Justin Senese spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO Justin Senese	Off. Language: At the 25th Precinct stationhouse, Police Officer Justin Senese made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	F . Substantiated
G . PO Sean Regan	Discourtesy: At the 25th Precinct stationhouse, Police Officer Sean Regan spoke discourteously to § 87(2)(b)	G . Substantiated
H . SGT Norman Ortega	Discourtesy: At the 25th Precinct stationhouse, Sergeant Norman Ortega spoke discourteously to § 87(2)(b)	H . Substantiated
I . PO Justin Senese	Off. Language: At the 25th Precinct stationhouse, Police Officer Justin Senese spoke offensively regarding § 87(2)(b) actual or perceived disability.	I . Substantiated

Officer(s)	Allegation	Investigator Recommendation
J . PO Justin Senese	Discourtesy: At the 25th Precinct stationhouse, Police Officer Justin Senese spoke discourteously to § 87(2)(b)	J . Substantiated
K . PO Justin Senese	Abuse: At the 25th Precinct stationhouse, Police Officer Justin Senese searched the vehicle in which § 87(2)(b) was an occupant.	K . Within NYPD Guidelines

Case Summary

On June 22, 2023, § 87(2)(b) filed this complaint on his behalf and that of his sister, § 87(2)(b) through the agency's website. On December 5, 2023, this case was reassigned from Investigator Arlyn Rivera to the undersigned following Investigator Rivera's departure from the agency.

On December 8, 2022, at approximately 8:00 p.m., in the vicinity of East 123rd Street and Park Avenue in Manhattan, § 87(2)(b) was pulled over by PO Justin Senese and Sergeant Norman Ortega of the 25th Precinct for running a red light. During the interaction, § 87(2)(b) claimed that PO Senese and Sgt. Ortega knew § 87(2)(b). Sgt. Ortega responded, "I don't know you from that piece of shit in the street" (**Allegation A: Discourtesy, Substantiated**). PO Senese forcibly moved § 87(2)(b) to the police vehicle (**Allegation B: Force, Within NYPD Guidelines**). PO Senese told § 87(2)(b) to get out of the street or she would be arrested (**Allegation C: Abuse of Authority, Substantiated**). Sgt. Ortega seized § 87(2)(b) vehicle (**Allegation D: Abuse of Authority, Within NYPD Guidelines**).

While § 87(2)(b) was being processed at the 25th Precinct stationhouse, PO Senese told him, "Get the fuck out of my face," "do you fucking understand, fucking little bitch, and shut the fuck up" (**Allegation E: Discourtesy, Substantiated, Allegation F: Offensive Language, Substantiated**). When § 87(2)(b) commented on PO Sean Regan's mustache, the latter responded to § 87(2)(b) "Your shit is patchy as fuck" referring to § 87(2)(b) facial hair (**Allegation G: Discourtesy, Substantiated**). § 87(2)(b) told Sgt. Ortega to "look him up" in which Sgt. Ortega responded, "I don't got to look up shit" (**Allegation H: Discourtesy, Substantiated**).

Before being placed in the holding cell, § 87(2)(b) was irate and asked PO Senese to punch him. PO Senese responded, "You're crazy" and "I'm not an asshole like you" (**Allegation I: Offensive Language, Substantiated, Allegation J: Discourtesy, Substantiated**). PO Senese searched § 87(2)(b) vehicle (**Allegation K: Abuse of Authority, Within NYPD Guidelines**). § 87(2)(b) was arrested during this incident. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation obtained body worn camera footage from PO Senese, Sgt. Ortega, PO Regan, PO Alexander Pacult, PO Edwin Lau, and PO Nicholas Lamere of the 25th Precinct. PO Senese's dashboard camera footage was obtained by the investigation (**Board Review 02: videos, Board Review 03: summaries, Board Review 04: summary**).

Findings and Recommendations

Allegation (A) Discourtesy: At East 123rd Street and Park Avenue in Manhattan, Sergeant Norman Ortega spoke discourteously to § 87(2)(b).

PO Senese's (**Board Review 05: video, Board Review 06: summary**) and Sgt. Ortega's (**Board Review 07: video, Board Review 08: summary**) body worn camera footage were consistent with each other.

At 1:20 minute of PO Senese's body worn camera footage, PO Senese approaches the driver side of § 87(2)(b) vehicle and asks for his driver's license, car insurance, and registration. § 87(2)(b) obtains his documents and asks why he is being pulled over. PO Senese replied that the license plate has the frame around it, and he failed to stop at a red light. § 87(2)(b) disputes this claim. PO Senese checks § 87(2)(b) information in the database. Results of the search are visible on PO Senese's phone. PO Senese passes the phone to Sgt. Ortega. At 5:23 minutes, PO Senese questions § 87(2)(b) about the license plate on his car and asks him to step out.

At 6:50 minutes, Sgt. Ortega informs § 87(2)(b) that he is going to be taken to the stationhouse and is handcuffed by PO Senese. Sgt. Ortega asks § 87(2)(b) for his name. § 87(2)(b)

§ 87(2)(b) says that Sgt. Ortega knows his name because he got his ID, and he will find out who he is. At 7:00 minutes, Sgt. Ortega replies, “I don’t know you from that piece of shit in the street.”

Sgt. Ortega admitted to using profanity towards § 87(2)(b). Sgt. Ortega said, “I don’t know you from that piece of shit on the street” after § 87(2)(b) refused to continuously provide his name to the officers. Sgt. Ortega had observed fecal waste on the sidewalk and after seeing it, that was the first thing he used as a response to § 87(2)(b) negative comments towards the officers. **(Board Review 09).**

NYPD Administrative Guide 304-11 indicates that police officers must interact with members of the public in a professional manner **(Board Review 10).**

DAO-DCT Case Number 2018-18951 states that profane remarks, made during stressful, violent confrontations or while an officer is trying to gain control of a chaotic situation, are not misconduct **(Board Review 11).**

Sgt. Ortega used profanity § 87(2)(g) when speaking with § 87(2)(b) while he was rear-cuffed and restrained by both officers. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Substantiated**.

Allegation (B) Force: At East 123rd Street and Park Avenue in Manhattan, Police Officer Justin Senese used physical force against § 87(2)(b).

After PO Senese asked § 87(2)(b) to step out of the vehicle and go to the trunk, he complied with this directive. PO Senese and Sgt. Ortega continued to ask him questions about the vehicle registration not matching the vehicle license plate. PO Senese handcuffed § 87(2)(b). While he verbally argued with PO Senese about being arrested, he did not resist or tense his body while being handcuffed. Sgt. Ortega was standing to the side and called for backup. Three marked police vehicles arrived on scene. PO Senese hooked his hand underneath the handcuffs and grabbed his right shoulder to forcefully maneuver § 87(2)(b) to the police vehicle. Two additional officers assisted PO Senese in escorting § 87(2)(b) to the vehicle **(Board Review 12).**

§ 87(2)(b) arrived on scene after receiving a phone call from § 87(2)(b). Upon arrival, she observed PO Senese grabbing one of § 87(2)(b) forearms and one of his shoulders while standing behind him. When a marked police vehicle arrived, PO Senese and Sgt. Ortega “dragged” § 87(2)(b) to a police vehicle. PO Senese was standing behind § 87(2)(b) as he held on to § 87(2)(b) shoulder while simultaneously pushing him. Sgt. Ortega was facing § 87(2)(b) as he walked in front of him. § 87(2)(b) was resisting and “giving pushback” to the officers **(Board Review 13).**

PO Senese’s **(Board Review 05: video, Board Review 06: summary)** and Sgt. Ortega’s **(Board Review 07: video, Board Review 08: summary)** body worn camera footage were consistent with each other. At 11:25 minutes of Sgt. Ortega’s body worn camera footage, § 87(2)(b) tells Sgt. Ortega, “I will deadass violate you. Word to my mother I will violate you” as he tries to get closer to Sgt. Ortega. PO Senese lightly pushes him back against the back of § 87(2)(b) car. § 87(2)(b) steps away from the car and repeatedly tells Sgt. Ortega that he will “violate” him. PO Senese places § 87(2)(b) against the rear of the vehicle with a firmer push. PO Senese continues pushing him against the car causing him to grip § 87(2)(b) shirt. § 87(2)(b) continues to tell Sgt. Ortega that he will “violate” him. § 87(2)(b) tells officers to look at his record and describes himself as a “certified shooter”. Sgt. Ortega and PO Senese escort § 87(2)(b) to the marked police vehicle.

PO Senese explained that § 87(2)(b) was not cooperative and made threats to him and Sgt. Ortega. PO Senese wanted to place § 87(2)(b) in the police vehicle as he was physically resisting being restrained by the officers in the middle of street. PO Senese grabbed § 87(2)(b) by one of his arms and his jacket while using his body weight to pull away **(Board Review 14).**

Threat, Resistance, Injury report # § 87(2)(b) shows that PO Senese and Sgt. Ortega restrained § 87(2)(b) on scene by grabbing him by both arms and walking him to the police vehicle after § 87(2)(b) was resisting by tensing and stiffening his body (**Board Review 15**).

NYPD Patrol Guide procedure 221-01 states that any application or use of force must be reasonable under the circumstances. In determining whether the use of force is reasonable, members of the service should consider the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subjects, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence (**Board Review 16**).

NYPD Patrol Guide procedure 221-02 is appropriate when a member of the service must gain compliance, control, or custody of an uncooperative subject, that member must take necessary action to protect personal safety of all persons present and isolate and contain the subject(s) (**Board Review 17**).

While in custody, § 87(2)(b) became physically aggressive, made threatening remarks, and called himself a "certified shooter", § 87(2)(g).
§ 87(2)(b), it is recommended that **Allegation B** be closed as *Within NYPD Guidelines*.

Allegation (C) Abuse of Authority: At East 123rd Street and Park Avenue in Manhattan, Police Officer Justin Senese threatened to arrest § 87(2)(b)

After being pulled over, § 87(2)(b) called § 87(2)(b) and asked that she come to the scene as a safety precaution. Approximately two minutes later, § 87(2)(b) arrived. She stood on the sidewalk approximately twenty feet away. While § 87(2)(b) was being taken to the police vehicle, § 87(2)(b) asked Sgt. Ortega if she could take custody of § 87(2)(b) vehicle and questioned the way the officers were handcuffing her brother. Sgt. Ortega informed § 87(2)(b) that she could not take the vehicle and threatened to arrest her (**Board Review 12**).

Upon arrival at the scene, § 87(2)(b) stood twelve feet away from § 87(2)(b) and the officers. Sgt. Ortega and § 87(2)(b) were engaged in a verbal dispute. She did not recall the statements that were being made between them. When § 87(2)(b) asked PO Senese if she could take custody of § 87(2)(b) vehicle, he said that she could not. § 87(2)(b) walked to the rear driver's side of § 87(2)(b) vehicle and stood within five feet of the officers and § 87(2)(b). She pulled out her phone to record the incident. PO Senese ordered § 87(2)(b) to back up, which she did not do. § 87(2)(b) said that she had a right to be present as a tax-paying citizen and to observe. PO Senese replied, "I pay taxes too. Get back before I arrest you". PO Senese ordered § 87(2)(b) to back up two additional times. § 87(2)(b) did not move upon his orders. § 87(2)(b) informed PO Senese that she was not close enough to do anything to him and was not preventing him from doing his job. She added that she wanted to know what was going on with § 87(2)(b). PO Senese walked towards § 87(2)(b) and said, "Get out the street, or I'll arrest you". § 87(2)(b) began to walk backwards from the street to the sidewalk (**Board Review 13**).

At 11:00 minutes of PO Senese's (**Board Review 05: video, Board Review 06: summary**) body worn camera footage, § 87(2)(b) arrives and asks the officers what is going on. Sgt. Ortega tells her that she can go to the stationhouse to find out. § 87(2)(b) asks if she can take § 87(2)(b) car and both officers inform her that she cannot. At 12:11 minutes, § 87(2)(b)

walks from the sidewalk to the middle of the street. § 87(2)(b) stood between PO Senese's unmarked vehicle and a marked police vehicle that had responded to the scene. The police vehicles were positioned in a way that blocked vehicular traffic on both ends of the street. PO Senese tells § 87(2)(b) "Get out of the street or you going to get arrested too." Sgt. Ortega instructs PO Senese to stay with the car and continues to take § 87(2)(b) to the police vehicle on his own. PO Senese walks over to § 87(2)(b) and instructs her to get away from § 87(2)(b) car. § 87(2)(b) responds, "Don't touch me" as she walks around the back of the vehicle to the sidewalk. PO Senese instructs her again to get away from § 87(2)(b) car and get back on the sidewalk. § 87(2)(b) says she is getting his name. PO Senese responds, "Do it from a distance. That's an order. If you don't follow my order, you will be arrested."

PO Senese told § 87(2)(b) to get off the street or she would be arrested as she was standing in the middle of the street next to § 87(2)(b) vehicle which was going to be taken into police custody. PO Senese believed § 87(2)(b) may have been attempting to retrieve § 87(2)(b) car. PO Senese explained that if § 87(2)(b) took the car or contents within it without permission, she would be obstructing their investigation (**Board Review 14**).

New York State Penal Law, Section 195.05 states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force, or interference, or by means of any independently unlawful act (**Board Review 18**).

§ 87(2)(g)

PO Senese's BWC footage showed that at the time of the threat of arrest, § 87(2)(b) was not within the driver side door of § 87(2)(b) vehicle, did not state that she was seeking contents from inside the vehicle and while she was standing in the middle of the street, vehicular traffic had been stopped by police vehicles on both sides of the street. § 87(2)(g)

it is recommended that **Allegation C** be closed as *Substantiated*.

Allegation (D) Abuse of Authority: At East 123rd Street and Park Avenue in Manhattan, Sergeant Norman Ortega seized § 87(2)(b) property.

§ 87(2)(b) stated that his vehicle was seized by the police during this incident (**Board Review 12**).

At 12:45 minutes of Sgt. Ortega's (**Board Review 07: video, Board Review 08: summary**) body worn camera footage shows him entering § 87(2)(b) vehicle and driving it back to the stationhouse.

NYPD Property Clerk Invoice § 87(2)(b) was obtained by the investigation and shows § 87(2)(b) vehicle was vouchered for safe keeping and returned to § 87(2)(b) (**Board Review 19**).

NYPD Patrol Guide procedure 218-19 states that a vehicle may be taken into custody if the true owner cannot be determined, and immediate arrest is not warranted (**Board Review 20**).

§ 87(2)(g)

it is recommended that **Allegation D** be closed as *Within NYPD Guidelines*.

Allegation (E) Discourtesy: At the 25th Precinct stationhouse, Police Officer Justin Senese spoke discourteously to § 87(2)(b)

Allegation (F) Offensive Language: At the 25th Precinct stationhouse, Police Officer Justin Senese made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (I) Offensive Language: At the 25th Precinct stationhouse, Police Officer Justin Senese spoke offensively regarding § 87(2)(b) actual or perceived disability.
Allegation (J) Discourtesy: At the 25th Precinct stationhouse, Police Officer Justin Senese spoke discourteously to § 87(2)(b)

PO Senese's second (Board Review 21: video, Board Review 22: summary) body worn camera footage and PO Regan's (Board Review 23: video, Board Review 24: summary) body worn camera was largely consistent.

At 4:00 minutes of PO Regan's body worn camera footage § 87(2)(b) is seen standing at the stationhouse's front desk. PO Senese begins to search § 87(2)(b) yells in PO Senese's face to stop searching him. At 5:22 minutes, PO Senese tells § 87(2)(b) to get out of his face and puts his fingers on § 87(2)(b) chest and gives him a light push backwards. § 87(2)(b) responds, "Fuck is you talking about." PO Senese tells § 87(2)(b) "Get the fuck out of my face". § 87(2)(b) says what he is going to do if he does not. PO Senese tells § 87(2)(b) "You don't fucking understand me? Get the fuck out of my face, fucking little bitch, shut the fuck up." § 87(2)(b) continues to yell and curse at PO Senese. At 5:40 minutes, PO Regan is grabbing § 87(2)(b) shirt from the shoulder area, holding him in place. § 87(2)(b) asks why he is touching him to which PO Regan says he could do what he wants. PO Senese says, "because he could fucking touch you. Is that an issue? Well, that's too fucking bad. Too fucking bad."

At 10:00 minutes of PO Senese's second body worn camera footage, § 87(2)(b) is being placed into the cell and is telling PO Senese repeatedly to punch him. PO Senese responds, "You think I want to lose my job over you. You're crazy." § 87(2)(b) continues to tell PO Senese to punch him. At 10:50 minutes, PO Senese responds, "I'm not an asshole like you." PO Senese exits the cell.

PO Senese stated that he used profanity and offensive language towards § 87(2)(b) inside of the stationhouse because § 87(2)(b) was getting aggressive, refused to enter the holding cell, and told PO Senese several times to punch him (Board Review 14).

NYPD Patrol Guide 200-02 states that officers should treat every citizen with courtesy, professionalism, and respect (Board Review 25).

NYPD Administrative Guide 304-06 states that officers are prohibited from using disrespectful remarks regarding ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability (Board Review 26).

NYPD Administrative Guide 304-11 indicates that police officers must interact with members of the public in a professional manner (Board Review 10).

DAO-DCT Case Number 2018-18951 states that profane remarks, made during stressful, violent confrontations or while an officer is trying to gain control of a chaotic situation, are not misconduct (Board Review 11).

Even though § 87(2)(b) was being irate and using profanity towards PO Senese, § 87(2)(b)

§ 87(2)(b) was already arrested and in police custody within the station house, § 87(2)(g)

It is recommended that Allegations E, F, I and J be closed as Substantiated.

Allegation (G) Discourtesy: At the 25th Precinct stationhouse, Police Officer Sean Regan spoke discourteously to § 87(2)(b)

At 6:50 minutes of PO Regan's (Board Review 23: video, Board Review 24: summary) body worn camera footage, § 87(2)(b) begins to insult PO Regan's mustache. PO Regan

responds, “Your shit is patchy as fuck” referring to § 87(2)(b) facial hair.

PO Regan transported § 87(2)(b) back to the precinct stationhouse. PO Regan and PO Pacult proceeded to bring him to the front desk. § 87(2)(b) was making fun of PO Regan’s mustache while he was being processed. PO Regan laughed because he thought it was funny since his mustache is a little goofy. PO Regan responded, “Your shit is patchy as fuck.” PO Regan explained that uttered the statement by accident (**Board Review 27**).

NYPD Patrol Guide 200-02 states that officers should treat every citizen with courtesy, professionalism, and respect (**Board Review 25**).

NYPD Administrative Guide 304-11 indicates that police officers must interact with members of the public in a professional manner (**Board Review 10**).

DAO-DCT Case Number 2018-18951 states that profane remarks, made during stressful, violent confrontations or while an officer is trying to gain control of a chaotic situation, are not misconduct (**Board Review 11**).

Even though § 87(2)(b) was using profanity towards the officers, § 87(2)(g)

§ 87(2)(b) was already in police custody and in the station house, § 87(2)(g)

It is recommended that **Allegation G** be closed as **Substantiated**.

Allegation (H) Discourtesy: At the 25th Precinct stationhouse, Sergeant Norman Ortega spoke discourteously to § 87(2)(b)

At 8:00 minutes of PO Regan’s (**Board Review 23: video, Board Review 24: summary**) body worn camera footage, Sgt. Ortega tells § 87(2)(b) he likes shooters. § 87(2)(b) tells him to look up his record. Sgt. Ortega responds, “I don’t got to look up shit.”

Sgt. Ortega recalled § 87(2)(b) saying, “You should know who I am. You should fear me. You should run me, so you know who I am” while he was being processed. Sgt. Ortega stated he replied, “I don’t have to run shit.” He made this statement because he did not have to run anything, and the profanity used was a continuation of the profanity § 87(2)(b) used towards him (**Board Review 09**).

NYPD Administrative Guide 304-11 indicates that police officers must interact with members of the public in a professional manner (**Board Review 10**).

DAO-DCT Case Number 2018-18951 states that profane remarks, made during stressful, violent confrontations or while an officer is trying to gain control of a chaotic situation, are not misconduct (**Board Review 11**).

Even though § 87(2)(b) was being irate and using profanity towards the officers, § 87(2)(g)

§ 87(2)(b) was already arrested and in police custody within the station house, § 87(2)(g)

It is recommended that **Allegation H** be closed as **Substantiated**.

Allegation (K) Abuse of Authority: At the 25th Precinct stationhouse, Police Officer Justin Senese searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that PO Senese told him that he searched his vehicle and found a temporary Pennsylvania fraudulent license plate in his trunk. § 87(2)(b) explained that this license plate was not fraudulent and was a temporary plate that was placed on the vehicle when he

initially purchased it in Pennsylvania. Once the vehicle was in New York State, he was issued a New York State license plate and never discarded the temporary Pennsylvania license plate. § 87(2)(b) stated that the license plate he had mounted on his vehicle when the vehicle stop was conducted was seized, but the Pennsylvania license plate was not seized (**Board Review 12**).

The investigation did not obtain body worn camera footage of this conversation.

NYPD Property Clerk Invoice § 87(2)(b) was obtained by the investigation and shows a temporary Pennsylvania license plate and license plate frame was vouchered as arrest evidence. NYPD Property Clerk Invoice § 87(2)(b) was obtained by the investigation and shows two New York license plates, insurance card, vehicle registration, nine keys on a key ring, a cell phone, and cell accessory were vouchered for safe keeping and returned to § 87(2)(b). NYPD Property Clerk Invoice § 87(2)(b) was obtained by the investigation and shows an eBay receipt for plates and a New Jersey license plate was vouchered for safekeeping (**Board Review 19**).

NYPD Patrol Guide 218-13 (Board Review 28) states that whenever any property comes into the custody of this Department an inventory search will be conducted as follows: Search the interior of the vehicle thoroughly (BR 08). This search should include any area that may contain valuables including, but not limited to: (1) Glove compartment, (2) Console, (3) Map pockets in or on doors and rear or side of seats, (4) Areas under the seats and in and around the seat stuffing, and springs, (5) Under the floor mats, (6) Under and behind the dashboard, (7) Inside the ashtrays, (8) In the air vents where accessible, (9) Under the hood, (10) Trunk. An officer must remove all valuables from the vehicle and invoice on a separate property clerk invoice and any property of little value left inside the vehicle must be documented in the officer's activity log or memo book.

§ 87(2)(g) it is undisputed that § 87(2)(b) was arrested and his vehicle was taken into custody. § 87(2)(g) Therefore, it is recommended that **Allegation K** be closed as *Within NYPD Guidelines*.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Senese has been a member of service for eight years and has been a subject in ten additional CCRB complaints and thirteen allegations, of which seven were substantiated.:
 - **201800068** involved substantiated allegations of premises entered and/or searched against PO Senese. The Board recommended command discipline A and the NYPD imposed command discipline A.
 - **202103568** involved substantiated allegations of search of person, question, obstructed shield number, frisk, and failure to provide RTKA card against PO Senese. The Board recommended charges and the NYPD has not yet imposed discipline.
 - **202202753** involved substantiated allegations of threat of arrest, and discourteous word against PO Senese. The Board recommended command discipline B and the NYPD imposed command discipline B of five vacation days.
- Sgt. Ortega has been a member of service for fifteen years and has been a subject in thirteen additional CCRB complaints and sixteen allegations, none of which were substantiated.
- PO Regan has been a member of service for two years and has been the subject in one additional CCRB complaint and one allegation which was not substantiated.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of January 17, 2023, the New York City Office of Comptroller has no record of a Notice of Claim being filed regarding this incident (**Board Review 31**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 11

Investigator:	<u>Tatyana Gonzalez</u>	<u>Inv. Tatyana Gonzalez</u>	<u>01/18/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>01/18/24</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date